

STATE OF NEW YORK

4841--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 6, 2025

Introduced by M. of A. SIMON, STIRPE, SHIMSKY, STECK, McDONOUGH, K. BROWN, MAHER, SEMPOLINSKI -- read once and referred to the Committee on Higher Education -- recommitted to the Committee on Higher Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT establishing the "removing barriers to higher education success act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "removing barriers to higher education success act".

3 § 2. Definitions. For purposes of this act, the following terms shall
4 have the following meanings:

5 1. "Public institution of higher education" shall mean the state
6 university of New York and the city university of New York.

7 2. "Accommodation" shall mean an adjustment or modification that
8 enables a qualified student with a disability to participate fully in
9 the programs, services and activities of a public institution of higher
10 education, consistent with applicable federal and state law.

11 3. "Individualized education program" or "IEP" shall have the same
12 meaning as set forth in section 200.1 of title eight of the New York
13 codes, rules and regulations.

14 4. "Section 504 plan" shall mean a plan developed pursuant to section
15 504 of the Rehabilitation Act of 1973.

16 5. "Transition services" shall mean services designed to assist
17 students with disabilities in successfully transitioning from secondary
18 education to public institutions of higher education, including assist-
19 ance with documentation, accommodations, disability services, and
20 student supports.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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6. "Student with a disability" shall mean a student who has received services through an individualized education program, a Section 504 plan, or other documentation establishing disability pursuant to this act.

7. "Student advocate" shall mean an advocate designated by the department of education who provides information and support to students regarding obtaining accommodations at institutions of higher education, and who shall not be a pedagogical employee of the department of education.

§ 3. Students with disabilities policy and documentation; dissemination of information. 1. Each public institution of higher education shall adopt a policy that makes any of the documentation described in subdivision two of this section submitted by an enrolled or admitted student sufficient to establish that such student is an individual with a disability.

2. Such policy required pursuant to subdivision 1 of this section shall provide that any of the following documentation submitted by an enrolled or admitted student is sufficient to establish that the student is an individual with a disability:

(a) documentation that the individual has had an individualized education program (IEP) in accordance with section 614(d) of the Individuals with Disabilities Education Act, 20 USC 1400 et seq. The public institution of higher education may request additional documentation from an individual who has had an IEP if the IEP was not in effect immediately prior to the date when the individual exited high school;

(b) documentation that the individual has received services or accommodations provided to the individual under a Section 504 plan provided to the individual pursuant to section 504 of the Rehabilitation Act of 1973, 29 USC 701 et seq. The public institution of higher education may request additional documentation from an individual who has received services or accommodations provided to the individual under a Section 504 plan if the Section 504 plan was not in effect immediately prior to the date when the individual exited high school;

(c) documentation of a plan or record of service for the individual from a private school, a local educational agency, a state educational agency, or an institution of higher education provided under a Section 504 plan pursuant to section 504 of the Rehabilitation Act of 1973 or in accordance with the Americans with Disabilities Act of 1990;

(d) a record or evaluation from a relevant licensed or otherwise appropriately credentialed professional finding that the individual has a disability;

(e) a plan or record of disability from another institution of higher education; or

(f) documentation of a disability due to military service in the uniformed services.

3. The policy adopted pursuant to subdivision 1 of this section shall be transparent and explicit regarding information about the process by which the public institution of higher education determines eligibility for accommodations for an individual with a disability. Each public institution of higher education shall disseminate such information to students, parents, and faculty in accessible formats, including during any student orientation, and make the information readily available on a public website of the institution.

4. A public institution of higher education may establish less burdensome criteria than the criteria described in this section to establish

1 whether an enrolled or admitted student is an individual with a disability.
2

3 § 4. Establishment of reasonable accommodation. A public institution
4 of higher education shall engage in an interactive process to establish
5 a reasonable accommodation, including requesting additional documenta-
6 tion, if needed, for an individual pursuant to section 504 of the Reha-
7 bilitation Act of 1973 and the Americans with Disabilities Act of 1990.

8 § 5. Statewide transition services program. The education department,
9 in consultation with the state university of New York, the city univer-
10 sity of New York, local educational agencies, boards of cooperative
11 educational services, disability rights organizations, institutions of
12 higher education, and other relevant stakeholders, shall establish and
13 administer a statewide transition services program to assist students
14 with disabilities in obtaining accommodations at institutions of higher
15 education. As part of such program, the education department shall:

16 1. develop and implement a system to facilitate the electronic sharing
17 of information about such students' special education services by the
18 department of education with institutions of higher education, for which
19 sharing the department of education shall have obtained any consent
20 required by federal, state or local law. Such system shall allow a
21 student, a student's parent or a student's person in parental relation,
22 as defined in subdivision 10 of section 2 of the education law, to
23 provide consent for the department of education to share such informa-
24 tion;

25 2. utilize student advocates to assist such students;

26 3. post information on its website about how to obtain accommodations
27 at institutions of higher education; and

28 4. ensure such program complies with any applicable federal, state or
29 local laws, including, but not limited to, those related to the educa-
30 tion and privacy of such students.

31 § 6. Outreach. Not later than 30 days after the effective date of this
32 act, and continuing thereafter, the department of education, in consul-
33 tation with relevant agencies and stakeholders, shall conduct culturally
34 appropriate outreach on the program established by section five of this
35 act. Such outreach shall include, but not be limited to, the following:

36 1. creating a webpage that provides current information, which shall
37 also be made available in the twelve most common non-English languages
38 spoken by limited-English proficient individuals in the state, based on
39 the data in the most recent American community survey published by the
40 United States census bureau, regarding such program, including, but not
41 limited to, a description of such program, contact information, eligi-
42 bility information, and information about how to participate;

43 2. providing culturally appropriate outreach materials regarding such
44 program for distribution to each student with a disability who will be
45 graduating from high school in the current school year and such
46 student's parent or person in parental relation; and

47 3. collaborating with relevant agencies and stakeholders to enhance
48 awareness of such program, including, but not limited to, posting
49 culturally appropriate information about such program on the websites of
50 such agencies and stakeholders.

51 § 7. Reporting. 1. No later than one year after the effective date of
52 this act, and annually thereafter, the department of education shall
53 report on the program established by section five of this act to the
54 governor, the temporary president of the senate and the speaker of the
55 assembly and post such report on the department of education's website.

1 Such annual reports shall include, but not be limited to, the following
2 information for the previous year:

3 (a) the number of students who participated in such program, to the
4 extent known;

5 (b) a description of the assistance that such program provided such
6 students;

7 (c) a description of the system established pursuant to subdivision 1
8 of section five of this act;

9 (d) a description of the duties of student advocates; and

10 (e) an evaluation of the outreach required by section six of this act,
11 including, but not limited to, recommendations to improve such outreach,
12 recommendations to improve utilization of such program and any resources
13 needed to implement such recommendations.

14 2. No information that is required to be reported pursuant to this
15 section shall be reported in a manner that would violate any applicable
16 provision of federal, state or local law relating to the privacy of
17 information.

18 § 8. Construction with federal law. Nothing in this act shall be
19 construed to conflict with the terms "reasonable accommodation" and
20 "record of such an impairment" under the Americans with Disabilities Act
21 of 1990 or the rights or remedies provided under the Americans with
22 Disabilities Act of 1990.

23 § 9. This act shall take effect January 1, 2028. Effective immediate-
24 ly, the addition, amendment and/or repeal of any rule or regulation
25 necessary for the implementation of this act on its effective date are
26 authorized to be made and completed on or before such effective date.